

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 09/24/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. DO NOT INCLUDE ARGUMENT IN THIS EMAIL – LIST THE TOPICS ONLY.** Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER: C24-02554 CASE NAME: MILDRED RESER VS. KIA AMERICA, INC. SETTLEMENT CONFERENCE (WITH SETTLEMENT MENTOR)(IN PERSON REQUIRED) FILED BY: <u>*TENTATIVE RULING:*</u>	CIVIL
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Parties to appear for settlement conference as ordered.

2.	8:31 AM	CASE NUMBER: C25-00347 CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>	CIVIL
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Plaintiff must show cause by October 15 why the complaint was not timely served *and* why this matter should not be dismissed for failure to prosecute, or the case will be dismissed. The Court will set hearing October 22, 2026 at 9:00 am for that Order to Show Cause.

3. 9:00 AM CASE NUMBER: C25-00714 CIVIL
CASE NAME: PETER DRAGOLOVICH VS. BROOKE BUCHANAN
*FURTHER CASE MANAGEMENT CONFERENCE FCMC TO TRAIL PLAINTIFF'S DEMURRER TO CROSS-
COMPLAINT CONT'D FROM 8/12/26 TO 9/24/2026 (PER TR HRG DTD 3/4/26) AND REASSIGNED TO
DEPT 10
FILED BY:
TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to December 18, 2026, at 8:30 am in Department 10.

Law & Motion

4. 9:00 AM CASE NUMBER: 24CV13633 CIVIL
CASE NAME: ** CONFIDENTIAL **
*HEARING ON MOTION IN RE: SANCTIONS PURSUANT TO CCP 128.7
FILED BY: ** CONFIDENTIAL **
TENTATIVE RULING:

These matters are out-of-county matters. Tentative rulings available on Amador County website.

5. 9:00 AM CASE NUMBER: 24CV13633 CIVIL
CASE NAME: ** CONFIDENTIAL **
HEARING ON SUMMARY MOTION
FILED BY: ** CONFIDENTIAL **
TENTATIVE RULING:

These matters are out-of-county matters. Tentative rulings available on Amador County website.

6. 9:00 AM CASE NUMBER: 24CV13633 CIVIL
CASE NAME: ** CONFIDENTIAL **
HEARING ON SUMMARY MOTION
FILED BY: ** CONFIDENTIAL **
TENTATIVE RULING:

These matters are out-of-county matters. Tentative rulings available on Amador County website.

7. 9:00 AM CASE NUMBER: 26CV15091 CIVIL
CASE NAME: ** CONFIDENTIAL **
SANCTIONS, MEMORANDUM IN SUPPORT
FILED BY: ** CONFIDENTIAL **
TENTATIVE RULING:

These matters are out-of-county matters. Tentative rulings available on Amador County website.

8. 9:00 AM CASE NUMBER: C24-02737 CIVIL
CASE NAME: VANESSA MIGUEL VS. CONGREGATION B'NAI SHALOM OF CONTRA COSTA COUNTY
DISMISSAL
FILED BY:
TENTATIVE RULING:

Plaintiff's motion to dismiss PAGA claims is granted.

9. 9:00 AM CASE NUMBER: C24-03484 CIVIL
CASE NAME: MIKAELA BURDA VS. GREEN BAY REMODELING INC.
APPROVAL OF PAGA SETTLEMENT
FILED BY: BURDA, MIKAELA
TENTATIVE RULING:

Mikaela Burda moves for approval of the settlement of her PAGA suit against defendant Green Bay Remodeling Inc..

A. Background of the Case and Terms of Settlement

This a PAGA case, alleging a variety of violations of the Labor Code concerning failure to premium pay for missed breaks and failure to factor non-discretionary bonuses when calculating overtime, vacation pay, and sick pay as well as inadequate wage statements, failure to reimburse employees for phone expenses, and willful failure to pay all wages upon discharge. Plaintiff has given notice to the LWDA. The complaint was filed December 20, 2024.

The total settlement payment is \$90,000. The proposal is to distribute the settlement payment accordingly: attorney's fees of \$50,000, litigation costs of \$6,000, and \$2,950 in costs to the settlement administrator (ILYM Group). The remaining amount would be a PAGA penalty of \$31,050 which would be apportioned 65% to the LWDA and 35% to the aggrieved employees, i.e., \$20,182.50 to the LWDA and \$10,867.50 to the aggrieved employees. In this case, Plaintiff Burda is not requesting an enhancement award. She did, however, receive a separate, confidential settlement of her individual claims—which include wage and hour as well as discrimination and retaliation claims—out of which her counsel are *not* being compensated.

The settlement indicates that there are an estimated 43 aggrieved employees. The payments from the employee share of the penalty will be distributed among the employees based on the number of pay periods each individual worked during the PAGA period.

Plaintiff's counsel attests that they engaged in extensive arms-length settlement negotiations. Informal discovery was undertaken. Counsel's declaration provides a general discussion of the strengths and weaknesses of the case. He estimates the maximum potential recovery at \$304,450 and a likely exposure of \$30,377 and explains why the settlement is justified.

Plaintiff provided required notices to the LWDA of the initial claims and of the proposed settlement.

The settlement provides a process for mailing the notices to the aggrieved employees, who will not have to submit a claim, along with a process for following up on returned mail. Because this is

a PAGA settlement, not a class action, there is no opportunity to object or opt out.

The settlement provides that the value of checks uncashed after 180 days will be turned over to the State Controller's Office Unclaimed Property Division in the names of the aggrieved employees.

The settlement releases any claims under PAGA that were alleged or reasonably could have been alleged on in the Complaint and PAGA Notices (The PAGA period is December 24, 2023, through the date of approval of the settlement by the Court.) Under relevant appellate authority, limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Similarly, in a PAGA case, the release is limited to claims set forth in the LWDA notice.

B. Standards for Review of a PAGA Settlement

Settlements in PAGA cases must be approved by the court. (Labor Code § 2699(s)(2).) The Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 63.)

C. Application to this settlement

Plaintiff indicates that the settlement is fair and was evaluated by counsel based on adequate information and arms-length negotiation. Even assuming success on the merits of each claim, PAGA gives the court discretion to reduce penalties for a variety of reasons, including where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory." (Labor Code, § 2699(e)(2).) These factors make the result hard to predict. Considering counsel's analysis, the Court finds that the recovery is fair, reasonable, and adequate.

Labor Code section 2699(k)(1) provides that a prevailing employee in a PAGA action may recover attorney's fees. Plaintiff seeks \$50,000, relying at least in theory on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Although *Lafitte* concerns a class action, not a PAGA-only case, this Court views the use of a lodestar cross-check as appropriate here.

Plaintiff has conducted a lodestar cross-check. Counsel calculate 217.1 hours, at an hourly rates ranging from \$450 to \$700 per hour, depending on the attorney. This results in a lodestar of approximately \$104,495, with an implied negative multiplier. Counsel do not explain how they arrived at the \$50,000 number, which is 55.5% of the settlement fund. Counsel Nakama declares that he only spent 6.3 hours on Burda’s individual non-wage and hour claims. This is certainly a very small share of the overall hours. On the other hand, that Burda is not paying attorney’s fees on her individual claims in effect represents both an enhancement award to Burda and potentially an inappropriate award of reasonable attorney’s fees. Given these concerns, the Court requires an in camera disclosure of facts relating to the individual resolution.

Costs of \$6,000 are sought. They are supported and are approved.

The administrator’s costs of \$2,950 are reasonable and are approved.

D. Conclusion

The Court requires additional information to approve the settlement.

10. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
FOR JUDGMENT ON THE PLEADINGS
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

CIVIL

Before the Court is Defendant Thomas Knoth’s Motion for Judgment on the Pleadings. As has occurred previously in this matter, Plaintiff Jonathan Cotham has failed to respond.

Background and Complaint

Knoth previously filed motions to compel arbitration and for judgment on the pleadings, both of which were effectively denied without prejudice, even though they were unopposed. The Court did, however, issue an Order to Show Cause as to Why Sanctions Should Not Issue as to failure to timely serve Knoth with the Complaint, pursuant to California Rule of Court 3.110. Plaintiff has never responded to that OSC.

On February 4, 2025, Plaintiff Jonathan Cotham filed suit against Tariq Mohammad Yaqub¹ and Thomas Knoth, alleging six causes of action arising out of the purchase of a property in Tuolumne County. The contract for sale of property was February 9, 2022 and escrow is alleged to have closed in

¹ Plaintiff dismissed Yaqub on June 23, 2025.

August 2022. The six causes of action are: (1) negligence; (2) breach of contract; (3) breach of the implied covenant of good faith and fair dealing; (4) fraud; (5) negligent misrepresentation; and (6) declaratory relief.

Knoth's basis for Motion for Judgment on the Pleadings is two-fold: (1) Plaintiff is beyond the statute of limitations on the disclosure claims, and (2) Plaintiff failed to investigate the property and exercise reasonable care for the fraud claim.

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Discussion

Statute of Limitations on Disclosure Claims

As Defendant accurately states, California law restricts the statute of limitations on real estate disclosure claims to two years. Civ. Code § 2079.4 ("In no event shall the time for commencement of legal action for breach of duty imposed by this article exceed two years from the date of possession, which means the date of recordation, the date of close of escrow, or the date of occupancy, whichever

occurs first.”) Here, the latest statement of possession alleged in the complaint is an ambiguous reference to close of escrow in August 2022. That is more than two years prior to the filing of the complaint. All disclosure claims are therefore barred by the statute of limitations. The Court therefore **grants the Motion** with respect to the **First, Second, Third, Fifth, and Sixth Causes of Action without leave to amend**.

Fraud Claim

Defendant makes many arguments relating to the fraud claim—the Fourth Cause of Action—that cannot be disposed of on this Motion. He asks the Court to consider that counsel Mary McNeill is Plaintiff’s husband as well as a realtor, who operated as the realtor for this transaction, all of which has been effectively concealed from the Court by Plaintiff to date. He also attaches the disclosure documents. Unfortunately for Knoth, such external facts and documents are not properly considered in a Motion for Judgment on the Pleadings. While the Court may at a later time find troubling such allegations about counsel, if true, the Court is not in a position to consider their truth at this time.

What *is* before the Court is whether these fraud claims, if taken true as alleged, can state a claim. Defendant points the Court to Civil Code section 2079.5, which places affirmative duties on the purchaser in a real estate transaction: “Nothing in this article relieves a buyer or prospective buyer of the duty to exercise reasonable care to protect himself or herself, including those facts which are known to or within the diligent attention and observation of the buyer or prospective buyer.” Although Plaintiff had the duty to conduct a reasonable investigation, there are allegations of fraud that are outside of this reasonable inspection, such as the making of an insurance claim. Plaintiff alleges that Mr. Yaqub and Mr. Knoth affirmatively misstated that insurance claims for fires had been made in June 9, 2020 and August 20, 2020. (Complaint ¶¶ 25-30.) While structural and other physical problems may be evident from a typical inspection, there is nothing before the Court to demonstrate that this allegation regarding insurance claims is such a set of facts that would be “within the diligent attention and observation of the buyer.” The Court therefore **denies** the Motion with respect to the **Fourth Cause of Action**.

Order to Show Cause

Since the Court issued the Order to Show Cause on March 5, 2026, Plaintiff has not responded. Counsel has appeared at one case management conference and otherwise not participated in this case. Recognizing that dismissal is a severe penalty, the Court will give one last opportunity to Plaintiff to prosecute this matter. If Plaintiff does not show cause by October 15, why the complaint was not timely served *and* why this matter should not be dismissed for failure to prosecute, the case will be dismissed. The Court will set hearing October 22, 2026, at 9:00 am for that Order to Show Cause.

11. 9:00 AM	CASE NUMBER: C25-00714	CIVIL
CASE NAME: PETER DRAGOLOVICH VS. BROOKE BUCHANAN		
PLAINTIFF'S DEMURRER TO CROSS-COMPLAINT - CONT'D FROM 8/12/26 TO 9/24/2026 (PER TR HRG DTD 3/4/26) AND REASSIGNED TO DEPT 10		

FILED BY: DRAGOLOVICH, PETER L

TENTATIVE RULING:

This matter involves a disputed fence and surrounding property in Lafayette, California. Plaintiffs and Defendants are neighbors, both of whom lay claim to a portion of land lying on Plaintiffs' side of a fence. Defendants have sought to remove the fence and improvements on that land on the basis of a survey showing it is Defendants' property.

Plaintiffs Peter and Rachel Dragolovich filed their complaint against Brooke Buchanan and Mark Sanders on March 13, 2025. They immediately moved for a Preliminary Injunction and Temporary Restraining Order, which was granted March 14, 2025. Soon after, they sought defaults against Defendants, which were granted by the clerk. On April 29, 2025, the Court set aside those defaults and ordered answers/cross-complaints filed by May 6, 2025. Plaintiffs then moved for a Preliminary Injunction.

On May 30, 2025, the Court found as follows, with respect to the Preliminary Injunction:

The Court hears arguments.

The Court finds that the Plaintiffs did not meet all the elements to date for adverse possession and prescriptive easements.

Plaintiffs did not meet their burden of proof.

Plaintiffs' Preliminary Injunction is denied.

The Temporary Restraining Order is dismissed

The 7/9/25 Motion for Lis Pendens is taken off calendar.

The Court maintains the 7/29/25 Case Management Conference. The court will set a hearing re:

Defendant's damages at that time of the CMC.

Parties to meet and confer.

Defendants filed their Answer and Cross- Complaint on May 5, 2025. On May 15, 2025, Plaintiffs demurred to the cross-complaint. The hearing was set for September 24, 2025. On September 16, 2024, the parties stipulated to continue the hearing until after a scheduled mediation. The Court continued it until March 4, 2026. At a Case Management Conference on February 20, 2026, the Court further continued the demurrer hearing until 8/12/2026. On March 4, 2026, the Court sent notice to all parties that the hearing was being reset in this Department on September 24, 2026. All parties acknowledge this hearing in their most recent case management conference statements. Nevertheless, the Court has at no point received any opposition to the Demurrer. Plaintiffs' declaration shows efforts to meet and confer, none of which received any responses.

Plaintiffs/Cross-Defendants demur to the Second and Third Causes of Action in the Cross-Complaint. Both causes of action rely on Plaintiffs' filing of a Notice of Pendency of Action on March 14, 2025. The Second Cause of Action is for Slander of Title, and the Third Cause of Action is for an Injunction relating to that Plaintiffs' "claiming to control or claim ownership rights over a fence and retaining wall

on Cross-Complainants' Property."

Defendants/Cross-Complainants lack specificity in their Cross-Complaint. They do not explain how Plaintiffs/Cross-Defendants knew that their claims were false when they filed the lis pendens. That lis pendens was, additionally, privileged under Civil Code 47(b)(4).

The Court sua sponte takes judicial notice of the filing, on July 25, 2025, of the Withdrawal of Pendency of Action Pursuant to CCP § 405.50, which refers to a Lis Pendens recorded April 23, 2025. This filing potentially renders this portion of the Cross-Complaint moot.

For all these reasons, the Court **sustains** the demurrer to the Second and Third Causes of Action of Defendants' Cross-Complaint without leave to amend. Plaintiffs shall file an Answer to the Cross-Complaint within 30 days of this order.

12. 9:00 AM CASE NUMBER: C26-00427 CIVIL
CASE NAME: ANDREW CHEKENE ENTERPRISES, INC. VS. STANLEY ROTH
PETITION RE RELEASE OF PROPERTY FROM LIEN
FILED BY: ROTH, STANLEY
TENTATIVE RULING:

Before the Court is a verified petition by defendant Stanley Roth which seeks release of property from a mechanic's lien filed by Plaintiff. Defendant Roth also filed a motion for release of property from claim of lien which is set for hearing concurrently with the petition. For the reasons set forth, the petition and motion are **denied without prejudice** to Roth filing and serving an amended petition in compliance with the Civil Code as stated below and renewed motion. The Court hereby schedules **9:00 a.m. on November 5, 2026** for the hearing on any amended petition and renewed motion, which must be filed by October 6, 2026 (30 days prior) if Roth wishes to retain that hearing date.

Background

Plaintiff Andrew Chekene Enterprises, Inc. dba A.C. Enterprises ("ACE") filed its complaint for foreclosure of a mechanic's lien, breach of contract, and related claims against Stanley Roth on February 5, 2026. The property involved is located on Magee Court in Moraga. On May 1, 2026, defendant Stanley Roth filed a verified petition under Civil Code section 8484 asking for his property to be released from the mechanic's lien. On the same date, he also filed a motion for release of the property from the mechanic's lien, and on June 18, 2026, an amended notice of motion for release of the property from the lien. ACE opposes the petition and motion on both substantive grounds regarding the timeliness of ACE's initiation of this action based on an alleged tolling agreement, and on procedural grounds based on deficiencies in the content and method of service of the verified petition and motion.

Legal Requirements for Petition for Release of Mechanic's Lien

Civil Code section 8484 provides:

A petition for a release order shall be verified and shall allege all of

the following:

- (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.
- (b) The county in which the claim of lien is recorded.
- (c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- (d) The legal description of the property subject to the claim of lien.
- (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- (g) Whether an action to enforce the lien is pending.
- (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

(Civ. Code § 8484(a)-(h) [emphasis added].)

In addition, Civil Code section 8486 specifies the time for hearing the petition and the manner of service:

- (a) On the filing of a petition for a release order, the clerk shall set a hearing date. The date shall be not more than 30 days after the filing of the petition. The court may continue the hearing only on a showing of good cause, but in any event the court shall rule and make any necessary orders on the petition not later than 60 days after the filing of the petition.
- (b) The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108.

(Civ. Code § 8486(a) and (b) [emphasis added].)

ACE also cites the Court to Civil Code section 8488 addressing the burden of proof on the petition and the prevailing party's right to attorney's fees.

- (a) At the hearing both (1) the petition and (2) the issue of

compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. The petitioner has the initial burden of producing evidence on those matters. The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of this article. The claimant has the burden of proof as to the validity of the lien.

(b) If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien.

(c) The prevailing party is entitled to reasonable attorney's fees.

(Civ. Code § 8488(a)-(c).)

Analysis

For the reasons set forth, the Court finds that the petition has procedural deficiencies warranting denial solely on procedural grounds and without prejudice to Roth filing an amended petition to correct the deficiencies before the Court addresses the merits of the validity of the mechanic's lien. The verified petition (a) does not attach a certified copy of the recorded mechanic's lien; (b) does not include a legal description of the real property subject to the lien; (c) does not state that no extension of credit was granted extending the time for foreclosure of the mechanic's lien under Civil Code section 8460; and (d) does not verify that no bankruptcy or other restraint preventing the enforcement of the lien exists. (Civ. Code §§ 8484(a), (d), (e), and (h).) The motion does not cure these deficiencies and also does not include the required documents and content. Roth appears to concede these deficiencies in his reply. (Reply pp. 6-9.)

Roth does not contend that the service of the petition was effectuated in the manner provided in Civil Code section 8486 but contends that ACE's general appearance in the action and filing of a substantive opposition waives any service defects. (Reply pp. 8-9.) Nothing in the service provisions of Civil Code section 8486, however, suggest that the lien claimant's appearance in the action by filing the complaint for foreclosure of the lien obviates the need for compliance with its service provisions.

Nevertheless, Roth contends that these procedural issues at most warrant a procedural denial of the petition and motion without prejudice. The Court agrees, and the Court agrees that this procedural ruling not on the merits does not support a determination of the "prevailing party" under Civil Code section 8488 until the petition is determined on the merits. Based on the procedural deficiencies in the content of the verified petition and noncompliance with the service provisions of Civil Code section 8486, the petition is denied without prejudice to Roth filing and serving an amended verified petition/motion.

13. 9:00 AM

CASE NUMBER: C26-00427

CIVIL

CASE NAME: ANDREW CHEKENE ENTERPRISES, INC. VS. STANLEY ROTH

RELEASE PROPERTY FROM CLAIM OF LIEN

FILED BY: ROTH, STANLEY

TENTATIVE RULING:

See Line 12.

14. 9:00 AM CASE NUMBER: MSC21-00076 CIVIL
CASE NAME: VALDIVA VS. AYALA
RELIEVED AS COUNSEL AS TO ARMANDO AYALA
FILED BY: AYALA, ARMANDO
TENTATIVE RULING:

Given the Notice of Conditional Settlement of Entire Case filed September 21, 2026, the Court will postpone ruling on this Motion until October 7, 2026 at the further Case Management Conference.

15. 9:00 AM CASE NUMBER: N25-0895 CIVIL
CASE NAME: JAMES ADCOCK VS. STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
DISQUALIFY DEFENSE FIRM | DEPOSITION UPDATES
FILED BY:
TENTATIVE RULING:

By Notice filed September 18, 2026, this Motion was withdrawn.

16. 9:00 AM CASE NUMBER: N26-1374 CIVIL
CASE NAME: PETITION OF:LYNNETTE DIAZ
APP FOR SALE OF DWELLING
FILED BY:
TENTATIVE RULING:

Petitioner seeks to sell the house of judgment debtor Zachary Pelletier. Petitioner has notified Pelletier of this Petition by mail. Pelletier is, however, in state prison. Moreover, the restitution order that forms the basis of this Petition is on appeal. The Court continues this matter until December 17, 2026, for Petitioner to serve Pelletier in prison and to see the status of the appeal.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C24-03321 CIVIL
CASE NAME: SERGEY ARUTYUNYAN VS. CENTRAL CONTRA COSTA SANITARY DISTRICT
***HEARING ON MOTION FOR DISCOVERY QUASH SUBPOENAS**
FILED BY: ARUTYUNYAN, SERGEY
TENTATIVE RULING:

Plaintiffs filed a Notice of Withdrawal of Motion to Quash. Hearing vacated.

18. 9:01 AM CASE NUMBER: C25-00731 CIVIL
CASE NAME: CRAIG LEASE VS. WAYNE VAN NORSALL
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF PLAINTIFF CRAIG LEASE**
FILED BY: VAN NORSALL, WAYNE
TENTATIVE RULING:

Before the Court is Defendants' Motion to Compel the Deposition of Plaintiff Craig Lease. The Motion was filed June 10, 2026. The Court has received no timely opposition.

On the basis of the Declaration of William A. Munoz and the papers before the Court, while Plaintiff Lease briefly engaged in some belated meeting and conferring regarding a second attempt at his deposition, he has repeatedly failed to respond to communications and twice failed to appear for deposition as noticed. He has provided no acceptable reasons. Plaintiff must appear at a deposition as noticed by Defendants within 30 days of this order.

The Court will grant sanctions but will do so at the negotiated rate of \$315/hour for Mr. Munoz's time. The Court finds reasonable 12 hours of time, plus the court reporter fees. The total sanctions, payable by Mr. Lease to counsel for Defendants is therefore \$5,386, within 30 days from this order.

Failure to comply with this order will result in further sanctions, up to and including dismissal of this action. Code Civ. Pro. § 2030.030.

19. 9:01 AM CASE NUMBER: C26-00770

CIVIL

CASE NAME: JIE SUO VS. GEZHI WENG

***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING FURTHER RESPONSES TO FORM INTERROGATORIES AS TO DEFENDANT GEZHI WENG**

FILED BY: SUO, JIE

TENTATIVE RULING:

Before the Court is Plaintiff Jie Suo's Motion to Compel Further Responses to Interrogatories by Defendant Gezhi Weng. Defendant Weng, who became represented by counsel during the pendency of this Motion, served amended responses on September 11, 2026 and opposes the Motion. Suo replied, maintaining substantive concerns and a request for sanctions.

On March 23, 2026, Suo personally served Weng with Plaintiff's Request for Production of Documents, Set One. After Suo granted Weng a two week extension for responses, Weng served objections and responses. Meet and confer efforts were unsuccessful, with Weng declining to amend responses.

As noted above, after Suo filed this Motion, Weng amended her responses on September 11, 2026, the same day she filed her Opposition. In response to that amendment, Suo has informed the Court that there are no remaining issues relating to Form Interrogatory Nos. 2.11, 2.12, 8.1, 12.5, 13.1, 13.2, 14.1, and 14.2 because Weng's September 11 supplemental responses have substantially cured those interrogatory responses. Material deficiencies remain, however, in Form Interrogatory Nos. 9.1, 9.2, 12.1, 12.2, 12.3, 12.4, 12.6, 12.7, and 17.1.

Deficient Responses

Weng's supplemental responses do not render the Motion moot for two reasons. First, mere supplementation while a motion is pending does not moot the motion. (*County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256.)

Second, there remain issues with Weng's responses. Suo presented a Memorandum of Points and Authorities as well as a Separate Statement and Declaration with attachments. Weng responded with a brief arguing for exceptions and noting that the discovery responses had been supplemented. The Court has found no rebuttal of Suo's arguments regarding the deficient responses. The only change from Suo's original request to this ruling is that Suo appears satisfied with the amended response to Request Nos. 2.11, 2.12, 8.1, 12.5, 13.1, 13.2, 14.1, and 14.2. The Court will grant the entirety of the remaining request.

Interrogatory No. 9.1

This Interrogatory seeks information relating to damages attributable to the incident. Weng must provide dates and amounts of damages, or where those presently unknowable, the information from which those can be determined and calculated. She must provide facts about the specific nature of the damages calculated.

Interrogatory No. 9.2

This Interrogatory seeks identification of documents supporting the existence of damages attributable to the incident. Weng must describe the required documents with specificity so that they can be identified. Broad categories of documents—especially when specific documents have been produced—are not a proper substitute. (*Deyo, supra*, 84 Cal.App.3d at p. 784 ("A broad statement that the information is available from a mass of documents is insufficient.")).

Interrogatory No. 12.1

This Interrogatory seeks information regarding witnesses to the incident. As evidenced by Weng's response to Interrogatory No. 17.1, Weng has failed to respond fully to this Interrogatory and must supplement fully with all reasonable diligence. She has had ample time to perform this inquiry.

Interrogatory No. 12.2

This Interrogatory seeks information regarding interviews of witnesses to the incident. Weng must supplement fully with all reasonable diligence by providing dates and requested contact information that is available within her records. She has had ample time to perform this inquiry.

Interrogatory No. 12.3, 12.4, 12.6

These Interrogatories seek information regarding recorded statements of individuals, photographs (and similar), and reports relating to the incident. Weng unduly limited the response to these Interrogatories to documents she intends to rely upon. The Interrogatory seeks potentially relevant documents, and Weng must identify all responsive documents whether she intends to use them or not. Moreover, facts are not privileged, and Weng must identify them without restriction.

Interrogatory No. 12.7

This Interrogatory seeks information regarding inspections of the scene of the incident—here the

property at question. Weng must provide the dates of each inspection. She has had ample time to perform this inquiry.

Interrogatory No. 17.1

This Interrogatory seeks information supporting responses other than unqualified admissions to the Requests for Admission. Even after supplementation, instead of providing information responsive to this Form Interrogatory, Weng has referred to general categories of documents. She must provide the names, addresses, and telephone numbers of all persons having knowledge of the supporting facts as well as a concrete identification of supporting documents and tangible things and the name, address, and telephone number of the person who has each document or thing.

Sanctions

Prior self-represented status does not excuse Weng's behavior. She showed a clear intent to avoid discovery obligations. She could have retained counsel and chose not to, as evidenced by her retention of the very same counsel representing the entity defendant now. Suo's counsel has explained his expenditure of time on this Motion and justified the request for \$15,600. The Court will grant sanctions in that amount, payable to Michael Mazzone, counsel for Jie Suo, within 30 days.

20. 9:01 AM CASE NUMBER: C26-00770

CIVIL

CASE NAME: JIE SUO VS. GEZHI WENG

***HEARING ON MOTION FOR DISCOVERY FOR ORDER COMPELLING FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, AS TO DEFENDANT GEZHI WENG**

FILED BY: SUO, JIE

TENTATIVE RULING:

Before the Court is Plaintiff Jie Suo's Motion to Compel Further Responses to Requests for Production of Documents by Defendant Gezhi Weng. Defendant Weng, who became represented by counsel during the pendency of this Motion, served amended responses on September 11, 2026 and opposes the Motion. Suo replied, maintaining substantive concerns and a request for sanctions.

On March 23, 2026, Suo personally served Weng with Plaintiff's Request for Production of Documents, Set One. After Suo granted Weng a two week extension for responses, Weng failed to respond. She had served responses to Suo's Requests for Admission and Interrogatories. Weng finally served her responses to the document requests on May 27, 2026. Meet and confer efforts were unsuccessful, with Weng declining to amend responses. As noted above, after Suo filed this Motion, Weng amended her responses on September 11, 2026, the same day she filed her Opposition. In response to that amendment, Suo has informed the Court that there are no remaining issues with Request No. 5 but Suo continues to seek further responses and production as to Requests 1 through 4, and 7 through 14.

Waiver of objections

Weng's original responses claiming delay "due to inadvertence, workload, and ongoing efforts to

gather and review documents. Responding Party does not intend to waive any applicable privileges, privacy rights, or protections. Responding Party further reserves the right to supplement these responses.” She provided no objections in this response, although she did mention the concept of privilege. Weng has presumptively waived all objections to these requests and it is her burden to seek relief from that waiver. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408.) The only effort to do so is contained in her Opposition brief, where her counsel argues that her self-represented status at that time, while not an excuse, is an explanation. Counsel provides absolutely nothing beyond these conclusory statements. Weng’s claimed “inadvertence, workload, and the continuing effort to gather and review documents” is unsupported and inconsistent with the facts before the Court. Moreover, that she continues to avoid producing relevant documents demonstrates that she appears to believe that the discovery rules are malleable and flexible to meet her needs, rather than a core obligation of parties in California litigation.

As no facts have been presented to support relief from the waiver of objections, the Court finds that all objections to this set of Requests have been waived.

Deficient Responses

Weng’s supplemental responses do not render the Motion moot for two reasons. First, mere supplementation while a motion is pending does not moot the motion. (*County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256.)

Second, there remain issues with Weng’s responses. Suo presented a Memorandum of Points and Authorities as well as a Separate Statement and Declaration with attachments. Weng responded with a brief arguing for exceptions and noting that the discovery responses had been supplemented. The Court has found no rebuttal of Suo’s arguments regarding the deficient responses. The only change from Suo’s original request to this ruling is that Suo appears satisfied with the amended response to Request No. 5. The Court will grant the entirety of the remaining request.

To avoid any doubt, the Court discusses the issues identified in Suo’s reply. To the extent Suo missed highlighting any deficiencies in her Reply, the Court does not intend to state that those documents need not be produced. Weng must produce *all documents* responsive to Requests 1-4, 7-14 in her possession, custody, or control. Whether they are “presently located” in her possession, is not the question. As her now-retained counsel is aware, she must do more to facilitate their discovery. Weng must produce entire spreadsheets, not just selective rows. These spreadsheets must be in native format. Weng must produce:

- (1) the identified promissory notes
- (2) documents underlying the Mercedes-Benz and Chase Auto Finance loans or advances
- (3) records relating to transactions to the joint checking account
- (4) complete bank records for Bank of America accounts, including bank statements,

management agreements, bank records

(5) communications and agreements relating to \$530,000 wire shown in WENG000001

(6) application, negotiation, and communication records for refinancing

Finally, Weng cannot deliberately reframe allegations or the requests to avoid producing documents. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 (“A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”).) Weng must respond to Requests 2, 3, 10 as those Requests were intended.

Weng must supplement her responses accordingly within 15 days from this decision and produce all responsive documents within 30 days.

Sanctions

Prior self-represented status does not excuse Weng’s behavior. She showed a clear intent to avoid discovery obligations. She could have retained counsel and chose not to, as evidenced by her retention of the very same counsel representing the entity defendant now. Suo’s counsel has explained his expenditure of time on this Motion and justified the request for \$13,390. The Court will grant sanctions in that amount, payable to Michael Mazzone, counsel for Jie Suo, within 30 days.

Law & Motion
Add On

21. 9:00 AM CASE NUMBER: MSC21-02258 CIVIL

CASE NAME: THOMAS VS. ECKERT

***HEARING ON MOTION IN RE: TO CONTINUE TRIAL FILED ON 09/10/26 BY DAVID ECKERT**

FILED BY: ECKERT, DAVID

TENTATIVE RULING:

For the reasons stated in the ruling on Line 21 and on the basis of that determination, this Motion is denied. The course of conduct prior to any joint defense agreement is what placed Defendant Eckert in the trial readiness position he now faces. This is not good cause for continuance, especially given the age of this case.

22. 9:00 AM

CASE NUMBER: MSC21-02258

CIVIL

CASE NAME: THOMAS VS. ECKERT

***HEARING ON MOTION IN RE: FOR LEAVE TO FILE CROSS-COMPLAINT FILED ON 09/10/26 BY DAVID ECKERT**

FILED BY: ECKERT, DAVID

TENTATIVE RULING:

The motion for leave to file a cross-complaint filed by defendant David Eckert, is **denied**, as discussed below.

This case concerns a dispute between plaintiff Adrienne Thomas, the owner of a condominium, and several defendants associated with the management of the condominium complex. The defendants named in the operative Second Amended Complaint include Baywoods Homeowners Association and the Homeowners Management Company, LLC (collectively, "HOA") and David Eckert, an individual. Among other claims, plaintiff alleges that defendants were negligent in maintaining and repairing HOA property as required by the CC&Rs, causing her financial loss through personal injury and property damage.

The case was set for a jury trial at the case management conference held on August 17, 2026. The date chosen for the jury trial was September 28, 2026, a date which accommodated the five-year deadline to bring the case to trial, since this case has been pending since October 2021. Recently the HOA defendants served plaintiff with an offer to compromise under Code of Civil Procedure section 998 (the "998 offer"), which she accepted. The terms of the 998 offer provide for payment and a dismissal with prejudice rather than entry of judgment. (See Declaration of Colin J. Barreno in Support of Opposition, hereinafter "Barreno Decl.," ¶11.)

Eckert filed this motion seeking leave to file a cross-complaint against the HOA defendants on September 10, 2026. Prior to filing, no attempt was made to stipulate with plaintiff to a continuance of the trial date, nor was any offer made to stipulate to an extension of the time to bring this action to trial under Code of Civil Procedure, section 583.330. (Barreno Decl., ¶15.)

Eckert now argues he should be allowed to file a cross-complaint against the HOA defendants based on their purported violation of a joint defense agreement through their settling with the plaintiff via the 998 offer. Eckert contends his causes of action (for breach of contract, express contractual indemnity, statutory indemnification, and declaratory relief) are compulsory cross-claims which will be forfeited if he is not permitted to assert them in the proposed cross-complaint.

Both plaintiff and the HOA defendants oppose the motion. They argue, among other things, that these new claims are permissive and therefore not subject to the rules governing compulsory cross-complaints.

Code of Civil Procedure § 428.50, subdivision (a) describes compulsory cross-complaints. A party "shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint." Subdivision (b) provides that other cross-complaints "may be filed at any time before the court has set a date for trial." Subdivision (c) provides that a party "shall obtain leave of court" when filing outside the time limits mentioned in subdivisions (a) and (b). Further, the court must grant leave "in the interest of justice at any time during the course of the action."

The “interest of justice” therefore determines whether the cross-complaint should be permitted here. Code of Civil Procedure, § 428.10 allows a cause of action to be asserted in a cross-complaint against “a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against cross-complainant or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” Eckert has not adequately shown how the transactions are related, or addressed how the claims arose out of the same transaction.

Any delay in seeking leave is unexplained in the motion and the cause of action appears to have only recently occurred. Even if trial were re-set (which could severely prejudice plaintiff in light of the five year deadline), the addition of new claims would create significant delay since the HOA defendants would be entitled to file any preliminary challenges to the pleading, conduct discovery, file summary judgment motions, etc.

This request, on the eve of trial, is not in the interest of justice. Since Eckert has not established the interrelatedness of the additional claims, since he is able to litigate any liability against the HOA defendants in a separate action, and since significant delay will result, the interests of justice do not favor leave to file a cross-complaint at this late juncture.

23. 9:00 AM CASE NUMBER: N26-0671 CIVIL
CASE NAME: CLAIM OF:AVA AVALOS
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

With the additional information submitted, the Court approves this Minor’s Compromise. The Court will sign the forms submitted.

24. 9:00 AM CASE NUMBER: N26-0720 CIVIL
CASE NAME: CLAIM OF:LEVI SINGER
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

With the additional information submitted, the Court approves this Minor’s Compromise. Counsel to submit the appropriate forms for signature.